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"Courts sometimes make standing law more complicated than it needs to be." *Thole* v. *U. S. Bank N. A.*, 590 U. S. 538, 547 (2020). We decline respondents' invitation to do so here. As a candidate for office, Congressman Bost has standing to challenge the rules that govern the counting of votes in his election.

The judgment of the United States Court of Appeals for the Seventh Circuit is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE BARRETT, with whom JUSTICE KAGAN joins, concurring in the judgment.

While I agree with the Court that Congressman Bost has standing, I disagree with its reasoning. In my view, Congressman Bost has standing because he has suffered a traditional pocketbook injury, not because of his status as a candidate.

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I

The Constitution limits federal courts to deciding "Cases" and "Controversies." Art. III, § 2. To satisfy this requirement, a plaintiff must show (among other things) that he has suffered an actual injury—put colloquially, he must be able to answer the basic question " 'What's it to you?' " *Ante*, at 76. We give content to that maxim by requiring a plaintiff to show a "concrete, particularized, and actual or imminent" injury. *Clapper* v. *Amnesty Int'l USA*, 568 U. S. 398, 409 (2013) (internal quotation marks omitted). A "particularized" injury is a harm affecting a plaintiff "in a personal and individual way," not a "generalized grievance" shared by the

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District of Columbia et al. as *Amici Curiae* 20, it is neither clear why candidates would waste their resources in this way nor on what basis in federal law such suits could be brought. In any event, we address today only candidates' standing to challenge rules that, like Illinois's, govern the counting of votes in their elections.

public. *Spokeo, Inc.* v. *Robins*, 578 U. S. 330, 339, and n. 7 (2016) (internal quotation marks omitted). A "concrete" injury is a nonabstract harm of the type "that has traditionally been regarded as providing a basis for a lawsuit in English or American courts." *Id.*, at 340–341. And an "actual or imminent" injury is one that is "certainly impending" rather than "speculative." *Clapper*, 568 U. S., at 401.

A plaintiff must establish standing at the time of filing and maintain it throughout litigation. *Carney* v. *Adams*, 592 U. S. 53, 59 (2020). He must support each element of standing "with the manner and degree of evidence required at the successive stages of the litigation." *Lujan* v. *Defenders of Wildlife*, 504 U. S. 555, 561 (1992). At the pleading stage, "general factual allegations of injury resulting from the defendant's conduct may suffice." *Ibid.*; see *Spokeo*, 578 U. S., at 338 (a complaint must "'clearly . . . allege facts demonstrating'" standing).

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Pocketbook harm is a traditional Article III injury. *Tyler* v. *Hennepin County*, 598 U. S. 631, 636 (2023). That is so not only when a law directly imposes costs on a plaintiff, see, *e. g.*, *McGowan* v. *Maryland*, 366 U. S. 420, 430–431 (1961) (profits lost from Sunday-closing law), but also when a plaintiff "reasonably incur[s] costs to mitigate or avoid" the "'substantial risk'" of a harm caused by a statute, *Clapper*, 568 U. S., at 414, n. 5 (collecting cases). For instance, in *Monsanto Co.* v. *Geertson Seed Farms*, farmers of conventional alfalfa sought injunctive relief against a rule deregulating (and thus permitting) the planting of genetically modified alfalfa. 561 U. S. 139, 153–154 (2010). The farmers "established a reasonable probability that their organic and conventional alfalfa crops will be infected with the engineered gene" through cross-contamination. *Id.*, at 153 (internal quotation marks omitted). And because the farmers took costly preventative measures to "minimize the likelihood of potential contamination," they suffered an Article III injury. *Id.*, at 154–155; see also *Virginia* v. *American Booksellers*

Assn., Inc., 484 U. S. 383, 392 (1988) (finding standing where regulated booksellers must incur compliance costs or risk prosecution).

Like the farmers in *Monsanto*, Congressman Bost alleges that he will "reasonably incur costs to mitigate or avoid" the "'substantial risk'" of harm caused by the challenged statute. *Clapper*, 568 U. S., at 414, n. 5. He claims that Illinois's ballot-receipt deadline will increase the number of late-arriving ballots, which often "have discrepancies (e. g., insufficient information, missing signatures, dates, or postmarks) that need to be resolved." App. to Pet. for Cert. 66a. Invalid ballots, he says, will put his election at risk and damage his reputation. To avoid these reasonably probable harms, his campaign "has spent, and will spend, money, time, and resources to monitor and respond as needed to ballots received by state election officials after the national Election Day." *Id.*, at 65a. If poll watchers are not present to monitor ballot counting, county officials could "accep[t] possibly deficient ballots in bulk." *Id.*, at 67a. Accordingly, it is standard practice for campaigns to send poll watchers to monitor ballot counting to ensure that any discrepancies are resolved appropriately. See Brief for League of Women Voters et al. as *Amici Curiae* 20 (calling it "political malpractice" for candidates not to monitor ballot counting in their races). Because Congressman Bost's expenditures mitigate a substantial risk of harm, he has pleaded Article III injury.*

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II

Rather than take this straightforward path, the Court charts a novel one: To challenge "the rules that govern the counting of votes in his election," a candidate need only al-

*JUSTICE JACKSON says it is not reasonably probable that Congressman Bost will suffer any injury, *post* at 100 (dissenting opinion), implicitly rejecting the view that it is reasonable to employ poll watchers to monitor for discrepancies. But on a motion to dismiss, we credit Congressman Bost's factual allegations and draw all inferences in his favor.

lege that he is in fact a candidate in that election. *Ante*, at 76. The Court makes no attempt to demonstrate that the bare fact of facing changed vote-counting rules is a traditionally recognized harm. See *TransUnion LLC* v. *Ramirez*, 594 U. S. 413, 424–425 (2021). Nor does it grapple with *Already, LLC* v. *Nike, Inc.*, which holds that a plaintiff cannot show an Article III injury by claiming only that an allegedly unlawful practice benefits a competitor without any showing of harm to himself. 568 U. S. 85, 99 (2013). By holding that a candidate always has an interest in challenging vote-counting rules, even if those rules do not impose a competitive disadvantage on him, the Court today relieves candidates of having to show any real harm. See *ante*, at 77. Candidates are apparently entitled to this extraordinarily forgiving rule because they are "not common competitors in the economic marketplace." *Ibid.*

I cannot join the Court's creation of a bespoke standing rule for candidates. Elections are important, but so are many things in life. We have always held candidates to the same standards as any other litigant. See, *e. g.*, *Davis* v. *Federal Election Comm'n*, 554 U. S. 724, 733–734 (2008) (applying ordinary standing analysis to candidate challenging financial disclosure requirements); *Wittman* v. *Personhuballah*, 578 U. S. 539, 545 (2016) (applying ordinary standing analysis to legislators running for reelection who challenged redistricting plan); *Carney*, 592 U. S., at 59–60 (requiring a would-be candidate to show concrete intention to seek office to challenge partisan-balance rule). And we have repeatedly rejected requests to create special standing rules for particular litigants. See, *e. g.*, *Raines* v. *Byrd*, 521 U. S. 811, 821, 830 (1997) (legislator standing); *Arizona Christian School Tuition Organization* v. *Winn*, 563 U. S. 125, 134 (2011) (taxpayer standing); *Lujan*, 504 U. S., at 566–567 (animal-enthusiast standing); *FDA* v. *Alliance for Hippocratic Medicine*, 602 U. S. 367, 392–393 (2024) (doctor standing). I see no reason to afford candidates favored status.

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Nor do the practical realities of running for office warrant special treatment for candidates. As Congressman Bost concedes, "candidates could probably articulate their injury in terms of a pocketbook injury" "in many election law cases." Brief for Petitioners 21. So in addition to being unmoored from precedent, the Court's broader rule is unnecessary on Congressman Bost's own telling.

* * *

We need not deviate from established standing principles to resolve this case in Congressman Bost's favor. I respectfully concur only in the judgment.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, dissenting.

Under our standing precedents, this is an easy case. Article III requires plaintiffs to assert and establish an "injury in fact"—*i. e.*, the "invasion of a legally protected interest" that is both "concrete and particularized" and "actual or imminent." *Lujan* v. *Defenders of Wildlife*, 504 U. S. 555, 560 (1992) (internal quotation marks omitted). Congressman Bost has failed to allege that the election-related law he seeks to challenge has caused him to suffer any injury that satisfies those requirements.

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A majority of the Court nevertheless concludes that Bost has standing to sue based solely on his status as a candidate for office. The Court thereby subtly shifts from our longstanding actual-injury rule to a presumption that certain kinds of plaintiffs are sufficiently aggrieved to satisfy Article III standing, regardless of whether they will experience any particularized harm. In my view, this dubious departure from settled law disregards both the equal treatment of litigants and judicial restraint.

JUSTICE BARRETT rightly rejects today's bespoke candidate-standing rule. See *ante*, at 86 (opinion concurring in judgment). Yet her pocketbook theory would allow polit-